

		adhesive aspect of an agreement is not dispositive. Courts have observed that when, as here, there is no other indication of oppression or surprise, the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high. (<i>Peng v. First Republic Bank</i> (2013) 219 Cal.App.4th 1462, 1470.) Here, Plaintiff contends the agreement is unconscionable because Plaintiff had little opportunity to review the arbitration agreement and it contains terms Plaintiff contends are more favorable to the employer involving injunctive relief, discipline and discharge, and limits appellate review. California courts have generally upheld similar arbitration agreements in the employment context, even when they are required as a condition of employment. As applied to this case, Plaintiff has not shown the agreement improperly favors Defendant, and to the extent the arbitration terms are vague or could be construed to violate California law, the arbitrator must construe the agreement consistent with existing law. Therefore, the motion is granted.
8	Loeffler vs. Association Lien Services, Inc. 2016-00873201 Motion to Tax Costs	On 7/6/26, the Court granted Judgment debtor Jennier Loeffler's Motion to Tax Costs in an amount to be determined after the Court received further information. (ROA 1237.) The Court ordered Loeffler to file a supplemental declaration setting forth a corrected calculation of interest five court days before this hearing, which Loeffler timely filed on 9/14/26. (ROA 1267.) Based on the Loeffler's Supplemental Declaration, the Court TAXES costs in the amount of \$56,195.58.
9	Espinosa vs. Atkin 2025-01457170 Motion for Terminating Sanctions CMC OSC re Failure to Comply with CRC 3.110 (b)	Defendants Oil Crew Services Inc. and Christopher Otken's motion for terminating sanctions against plaintiff Luis Escalera Espinosa is DENIED without prejudice. "[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) Defendants have shown Plaintiff violated the Court's 5-12-26 Order compelling Plaintiff to serve responses to

		Defendants' Form Interrogatories (Set One); Special Interrogatories (Set One One); Request for Production of Documents (Set One), and to pay monetary sanctions of \$6,400. (Reddicono Decl., ¶13, Ex. 10.) Notice of the ruling was served by the court clerk by mail on Plaintiff. However, to date, Plaintiff has not complied with the Court's 5-12-26 Order. (Reddicono Decl., ¶14.) Defendants have also shown Plaintiff failed to appear at an Informal Discovery Conference ("IDC") or comply with the court's orders requiring the parties to meet and confer regarding the discovery issues prior to the IDC. (Reddicono Decl., ¶¶ 8-11.) Although Defendants have shown Plaintiff has violated the Court's prior orders, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate prior to imposition of terminating sanctions. Accordingly, Defendants' request for terminating sanctions is DENIED. Plaintiff is ORDERED to comply with the Court's 5-12-26 Order within 20-days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Defendants to give notice.
10	Dominguez vs. Radovic 2025-01469557 Motion to Enforce Settlement Status Conference	Defendant Sonja Radovic's Motion to Enforce Settlement Agreement is GRANTED. Plaintiff's service of the opposition Plaintiff did not file a signed proof of service showing the opposition was served on Defendant. (See Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As Defendant filed a timely reply, Defendant does not appear to have been prejudiced by Plaintiff's failure to do so. In the future, the Court may decline to consider documents unaccompanied by the required proof of service. Defendant's request for judicial notice Defendant requests judicial notice of the following documents: - Exhibit A – A Criminal Protective Order – Domestic Violence issued to Plaintiff by the Orange County Superior Court on 5/11/26; and - Exhibit B – Substitution of Attorney filed by Plaintiff's former counsel on 7/9/26.